

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JASON CAJIGAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE LIEUTENANT
JEFFREY SMITH, POLICE OFFICER MATTHEW
KELLEHER-Shield # 9770, POLICE OFFICER RYAN
YOUNG-Shield # 20674 and POLICE OFFICER
OSWALDO ESPINOZA-Shield # 8415,

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE LIEUTENANT JEFFREY SMITH
Tax ID # 942918
c/o New York City Police Department-Midtown
South Precinct
357 West 35th Street
New York, New York 10001

POLICE OFFICER MATTHEW KELLEHER-
Shield # 9770
Tax ID # 963589
c/o New York City Police Department-Midtown
South Precinct
357 West 35th Street
New York, New York 10001

Index #

Date of filing:

Plaintiff designates New York
County as the place of trial

SUMMONS

Basis of the venue is Locus of
Occurrence

Plaintiff resides at
1432 Doris Street, Apt. # 4R
Bronx, New York 10462

County of Bronx

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

Defendant's address:

POLICE OFFICER RYAN YOUNG -Shield #
20674

Tax ID # 963340

c/o New York City Police Department-Midtown

South Precinct

357 West 35th Street

New York, New York 10001

POLICE OFFICER OSWALDO ESPINOZA-
Shield # 8415

Tax ID # 947746

c/o New York City Police Department-

Highway Unit 1

160 Cabrini Boulevard, Suite 134

New York, New York 10033

Dated: Brooklyn, New York
February 27, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JASON CAJIGAS,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE LIEUTENANT
JEFFREY SMITH, POLICE OFFICER MATTHEW
KELLEHER-Shield # 9770, POLICE OFFICER RYAN
YOUNG-Shield # 20674 and POLICE OFFICER
OSWALDO ESPINOZA-Shield # 8415,Defendants.
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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JASON CAJIGAS**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT-specifically at Midtown South Precinct.
4. That prior hereto on May 25, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff JASON CAJIGAS, was held on October 6, 2023.

6. That on March 4, 2023 , and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield #9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, , as police officers, agents, servants and/or employees.

7. That on March 4, 2023 , and at all times hereinafter mentioned and upon information and belief, the plaintiff, JASON CAJIGAS, was lawfully present at or about the roadway in front of the premises known as 1250 Broadway, in the County, City and State of New York.

8. That on March 4, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JASON CAJIGAS, was lawfully at the aforementioned location inside his vehicle when he was approached, was forced out of his vehicle and then assaulted and battered by the defendants, POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield #9770, POLICE OFFICER RYAN YOUNG-Shield #20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield #8415. The assault and battery consisted of being grabbed, thrown to the ground, was struck and punched in the face on the right side, resulting in a fractured jaw and orbital fracture to the right eye as well as injuries to the mouth, teeth, head, and neck and was forcefully placed in handcuffs. After being taken into custody, the plaintiff was transferred to the Midtown South Precinct where he was held for a period of time. Thereafter, the plaintiff was taken to New York County Central Booking where he was processed. After Central Booking and being placed in handcuffs the plaintiff was brought to New York Presbyterian Hospital where he received medical treatment for his injuries under police custody. While at the hospital the plaintiff was advised that surgery could be necessary due to the extensive injuries to his face he received from the assault and battery.

9. That on March 4, 2023, and at all times hereinafter mentioned and upon information and belief, plaintiff, JASON CAJIGAS, was assaulted and battered by defendants, POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on March 4, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on March 4, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, who committed the aforementioned assault and battery upon the plaintiff, JASON CAJIGAS, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on March 4, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, JASON CAJIGAS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JASON CAJIGAS**

15. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, who assaulted, battered and violated the civil rights of the plaintiff, JASON CAJIGAS.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, JASON CAJIGAS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF JASON CAJIGAS**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, acted intentionally, recklessly and with utter disregard

to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

21. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JASON CAJIGAS.

22. That as a result of said intentional and negligent acts, the plaintiff, JASON CAJIGAS, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

23. By reason of the foregoing, the plaintiff, JASON CAJIGAS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JASON CAJIGAS**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. The defendant, THE CITY OF NEW YORK, through its policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, JASON CAJIGAS.

26. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

27. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

28. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

29. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

30. As a direct and proximate result of this unlawful conduct, the plaintiff, JASON CAJIGAS, sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JASON CAJIGAS**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

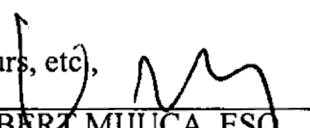
33. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE LIEUTENANT JEFFREY SMITH, POLICE OFFICER MATTHEW KELLEHER-Shield # 9770, POLICE OFFICER RYAN YOUNG-Shield # 20674 and POLICE OFFICER OSWALDO ESPINOZA-Shield # 8415, herein-above alleged.

34. By the reason of the foregoing, the plaintiff, JASON CAJIGAS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, JASON CAJIGAS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, JASON CAJIGAS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, JASON CAJIGAS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, JASON CAJIGAS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, JASON CAJIGAS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
February 27, 2024

Yours, etc,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
JASON CAJIGAS
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23JC03-04

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

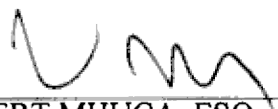
I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
February 27, 2024



ROBERT MIJUCA, ESQ.